

Kerala Building Rules, 2022

Document ID: KBR-2022

Document Type: Rules

Issuing Authority: Department of Local Self Government (LSGD), Government of Kerala

Date of Issue: 15 March 2022

Effective From: 1 April 2022

Status: Active (as amended by GO(P) No. 45/2024/LSGD dated 10 January 2024)

Preamble

In exercise of the powers conferred by Section 234 of the Kerala Municipalities Act, 1994 (Act 13 of 1994) and Section 228 of the Kerala Panchayat Raj Act, 1994 (Act 14 of 1994), the Government of Kerala hereby makes the following rules to regulate building construction, ensure structural safety, protect ecologically sensitive areas, and promote sustainable urban development across the State.

These rules shall be known as the **Kerala Building Rules, 2022** and shall come into force from 1 April 2022.

Chapter I: Preliminary

Rule 1. Short title and commencement

- (1) These rules may be called the Kerala Building Rules, 2022.
- (2) They shall come into force on 1 April 2022.

Rule 2. Definitions

In these rules, unless the context otherwise requires:

- (a) "**Building**" means any construction or part of a construction used or intended to be used for residential, commercial, industrial, institutional, or mixed purposes, and includes walls, fences, platforms, and other structures associated therewith.
- (b) "**Commercial Building**" means any building or part thereof used for commercial activities including shops, offices, hotels, restaurants, banks, showrooms, shopping complexes, and IT parks.
- (c) "**Ecologically Sensitive Zone**" means any area declared as such by the Government or located within 500 meters of lakes, rivers, backwaters, coastal regulation zones, forests, or wildlife sanctuaries, as notified from time to time.

(d) **"Environmental Clearance"** means prior approval obtained from the State Environment Impact Assessment Authority (SEIAA) or the Ministry of Environment, Forest and Climate Change (MoEFCC), as applicable under the Environment Impact Assessment Notification, 2006.

(e) **"Local Body"** means a Municipality, Corporation, or Panchayat having jurisdiction over the area where the building is proposed to be constructed.

(f) **"Permit"** means written permission issued by the Local Body or competent authority for construction, alteration, or demolition of a building in accordance with these rules.

Chapter II: Classification of Buildings

Rule 3. Building classification by use

Buildings shall be classified as follows:

- **Group A:** Residential buildings (single-family dwellings, apartments, hostels)
- **Group B:** Commercial buildings (shops, offices, hotels, restaurants, banks, showrooms)
- **Group C:** Industrial buildings (factories, workshops, warehouses)
- **Group D:** Institutional buildings (schools, hospitals, government offices)
- **Group E:** Mixed-use buildings (combination of above groups)

Rule 4. Building classification by height

- **Low-rise:** Up to 10 meters (Ground + 2 floors maximum)
- **Mid-rise:** 10 to 25 meters (Ground + 3 to 7 floors)
- **High-rise:** Above 25 meters (Ground + 8 floors and above)

Chapter III: Environmental Clearance Requirements

Rule 12. Mandatory environmental clearance for specified projects

(1) No building permit shall be issued for any project falling under the categories specified in the Environment Impact Assessment Notification, 2006, without prior environmental clearance from the competent authority.

(2) For commercial buildings (Group B) located in ecologically sensitive zones, the following provisions shall apply:

(3) No building permit shall be issued for commercial projects exceeding 3,000 square meters in built-up area within ecologically sensitive zones without prior environmental clearance from SEIAA. This requirement is mandatory and non-negotiable, irrespective of the project cost or nature of commercial activity.

(4) For the purposes of sub-rule (3), "ecologically sensitive zones" shall include:

- Areas within 500 meters of lakes, backwaters, and rivers
- Coastal Regulation Zone (CRZ) areas as notified under the CRZ Notification, 2011
- Areas within 1 kilometer of protected forests and wildlife sanctuaries
- Eco-sensitive zones declared under the Environment Protection Act, 1986

(5) The applicant shall submit a copy of the environmental clearance certificate along with the building permit application. The Local Body shall verify the authenticity of the certificate with SEIAA before issuing the permit.

(6) Any building constructed in violation of this rule shall be liable for demolition under Rule 24, and the officer who issued the permit without due verification shall be subject to departmental inquiry.

Chapter IV: Setback and Open Space Requirements

Rule 15. Minimum setback norms

(1) Every building shall maintain the following minimum setbacks from the boundary of the plot and from natural water bodies:

Building Type	Front Setback	Side Setback	Rear Setback	Setback from Water Body
Residential (low-rise)	2.0 m	1.5 m	2.0 m	5.0 m
Residential (mid/high-rise)	3.0 m	2.0 m	3.0 m	7.5 m
Commercial (all heights)	4.0 m	3.0 m	4.0 m	10.0 m
Institutional	5.0 m	4.0 m	5.0 m	15.0 m

(2) For commercial buildings located within ecologically sensitive zones, the minimum setback from any water body (lake, river, backwater, or coastal area) shall be 10 meters, measured from the highest flood level mark. No construction, including compound walls, shall be permitted within this setback area.

(3) The Local Body may permit minor deviations (up to 10% of the required setback) in cases of irregular plot shapes, provided that structural safety and fire safety norms are not compromised.

(4) Violation of setback norms shall render the building permit liable for cancellation, and any construction already undertaken shall be subject to penalty under Rule 24.

Chapter V: Local Body NOC and Other Approvals

Rule 18. Prerequisites for permit issuance

(1) Before issuing a building permit, the Local Body shall ensure that the applicant has obtained all mandatory approvals and clearances as applicable to the project, including but not limited to:

- Environmental clearance (for projects covered under Rule 12)
- Fire safety NOC from the Kerala Fire and Rescue Services (for buildings above 15 meters height)
- Pollution control board consent (for industrial and certain commercial projects)
- Airport Authority of India height clearance (for buildings within 20 km of airports)
- Heritage committee approval (for buildings in heritage zones)

(2) No building permit shall be issued without a valid No Objection Certificate (NOC) from the Local Body's Town Planning Section certifying compliance with setback norms, floor area ratio (FAR), and land use zoning. The NOC shall be valid for 12 months from the date of issue.

(3) The Local Body shall maintain a checklist of all required approvals for each building category and verify compliance before permit issuance. A copy of the completed checklist shall be attached to the permit file for audit purposes.

(4) In cases where the applicant claims exemption from any approval, the Local Body shall obtain written confirmation from the concerned department before proceeding with permit issuance.

Chapter VI: Penalties and Enforcement

Rule 24. Penalties for violation

(1) Any person who constructs, alters, or occupies a building without a valid permit, or in violation of the conditions of the permit, shall be liable for the following penalties:

Violation Type	Penalty
Construction without permit	Demolition of unauthorized construction + fine up to ₹10,00,000 (Ten Lakh Rupees)
Violation of setback norms	Demolition of encroaching portion + fine up to ₹5,00,000 (Five Lakh Rupees)
Construction without mandatory environmental clearance	Demolition of entire structure + fine up to ₹10,00,000 (Ten Lakh Rupees) + departmental inquiry against issuing officer
False declaration or forged documents	Fine up to ₹2,00,000 (Two Lakh Rupees) + criminal prosecution under IPC Section 420

(2) The Local Body shall issue a notice to the violator specifying the nature of violation and allowing 30 days for compliance or demolition. If the violator fails to comply, the Local Body may initiate demolition proceedings at the violator's cost.

(3) Any officer who issues a permit in violation of these rules, or fails to detect violations during inspection, shall be subject to departmental inquiry and may face disciplinary action including suspension, demotion, or dismissal from service.

(4) All penalties collected under this rule shall be credited to the Local Body's building regulation fund and used exclusively for enforcement activities.

Chapter VII: Miscellaneous

Rule 28. Power to relax

The Government may, in exceptional cases and for reasons to be recorded in writing, relax any provision of these rules, provided that such relaxation does not compromise structural safety, fire safety, or environmental protection.

Rule 29. Amendment

These rules may be amended by the Government from time to time by notification in the Kerala Gazette.

Rule 30. Repeal and savings

The Kerala Building Rules, 1999 are hereby repealed. However, any permit issued under the 1999 Rules before the commencement of these Rules shall remain valid for the period specified therein.

Schedule I: Application Form for Building Permit

Form B-7 (See Rule 18)

Part A: Applicant Details

- Name of Applicant: _____
- Address: _____
- Contact Number: _____
- Email: _____

Part B: Project Details

- Project Name: _____
- Location (with survey number): _____
- Distance from nearest water body (in meters): _____
- Project Area (built-up area in sq.m.): _____
- Building Type (Residential/Commercial/Industrial/Institutional): _____

- Proposed Height (in meters): _____

Part C: Approvals and Clearances

- Environmental Clearance: ☐ Yes ☐ No
If Yes, Certificate No.: _____ Date: _____
- Local Body NOC: ☐ Yes ☐ No
If Yes, Certificate No.: _____ Date: _____
- Fire Safety NOC: ☐ Yes ☐ No ☐ Not Applicable
- Pollution Control Board Consent: ☐ Yes ☐ No ☐ Not Applicable

Part D: Declaration

I hereby declare that all information provided above is true and correct to the best of my knowledge. I understand that any false declaration may result in cancellation of permit and legal action. I further declare that **all mandatory approvals and clearances are in place** before commencing construction.

Signature of Applicant: _____

Date: _____

Place: _____

Schedule II: Compliance Checklist for Building Permit Issuance

Checklist B-1 (See Rule 18(3))

Item	Requirement	Status (Yes/No/N/A)	Remarks
1	Land use zoning compliance		
2	Setback norms compliance (Rule 15)		
3	Floor Area Ratio (FAR) compliance		
4	Environmental clearance (Rule 12, if applicable)		
5	Local Body NOC (Rule 18(2))		
6	Fire safety NOC (if applicable)		
7	Pollution control consent (if applicable)		
8	Heritage committee approval (if applicable)		
9	Structural stability certificate		
10	Rainwater harvesting provision		

Verified by: _____ (Town Planning Officer)

Date: _____

Note: All items marked "No" must be resolved before permit issuance. Items marked "N/A" must be justified in remarks.

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